

that such claims warrant resolution through the public court system rather than through private arbitration.” (*Quilala, supra*, 117 Cal.App.5th at 83.) *Quilala* discussed the standard for bringing a sexual harassment claim under California law, not federal law. (*Quilala, supra*, 117 Cal.App.5th at 85-86.) *Quilala* also made it clear that the trial court correctly applied *current standards* when reviewing the allegations to determine if the plaintiff stated a plausible claim for sexual harassment, which indicates that the court was not intending to change the law. (*Id.* at 86- 87.)

Here, as in *Quilala*, the Court looked to the allegations in the complaint to determine whether Plaintiff had alleged a claim for sexual harassment under California law. The main difference between this case and *Quilala* is that here it was a close call as to whether Plaintiff had sufficiently alleged a claim for sexual harassment and in *Quilala* there were much stronger factual allegations to support a claim. (*Quilala, supra*, 117 Cal.App.5th at 86.) But the fact that *Quilala* was a stronger case for sexual harassment is not a change in the law. Nothing in *Quilala* suggested that all plaintiffs must bring allegations similar to the level alleged in *Quilala*.

The Court finds that *Quilala* did not constitute new law regarding what allegations are sufficient to state a claim for sexual harassment when determining whether the EFAA applies. Therefore, the motion for reconsideration is **denied**.

Defendant’s requests for judicial notice of the Court of Appeal opinion in *Quilala, supra*, 117 Cal.App.5th 75 is granted (although unnecessary as it is a published opinion). Defendant’s request for judicial notice of the complaint filed in San Francisco Superior Court in *Quilala* is **denied**. The Court of Appeal in *Quilala* sufficiently described the allegations at issue and there is no need for this Court to review the full complaint in *Quilala*.

**12. 9:00 AM CASE NUMBER: C25-02272**  
**CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL**  
**\*HEARING ON MOTION IN RE: FOR OSC RE SALE OF REAL PROPERTY**  
**FILED BY:**

**\*TENTATIVE RULING:\***

Pursuant to the Stipulation and Order filed on May 15, 2026, this hearing is continued to August 5, 2026 at 9:00 a.m. in this Department. No appearance is required on May 20, 2026.

**13. 9:00 AM CASE NUMBER: C25-03593**  
**CASE NAME: HALIM WINATA VS. KFORCE FLEXIBLE SOLUTIONS, LLC**  
**\*HEARING ON MOTION IN RE: TO STAY THIS ACTION PENDING THE RESOLUTION OF ARBITRATION**  
**FILED BY: THE CAPITAL GROUP COMPANIES, INC.**

**\*TENTATIVE RULING:\***

Defendant The Capital Group Companies Inc.’s (“Capital Group”) Motion for Stay Pending Resolution of Arbitration, filed on January 26, 2026 is unopposed. Accordingly, the Motion is **granted**. This matter is stayed pending resolution of Capital Group’s Motion to Compel Arbitration. The Court will execute the Proposed Order lodged on January 26, 2026. No appearance is required on May 20, 2026.